



Afghanistan Transitional Risk Outlook

Critical Minerals and Legal Risk Exposure Assessment

A White Paper On Legal, Institutional, and Investment Risk Assessment for Strategic Minerals in a High-Risk Transitional Environment.

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Version 1.0 — June 2026

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1. Executive Summary

Afghanistan occupies a rare and consequential position at the intersection of critical minerals, geopolitical competition, and transitional legal risk. Its mineral endowment—particularly in copper, lithium, rare earth elements, iron ore, and related strategic inputs—has drawn renewed attention as governments and industry actors seek to diversify supply chains essential to the global energy transition. Yet the jurisdiction’s commercial significance cannot be assessed through geology alone; it must be understood through the lens of institutional continuity, regulatory legitimacy, sanctions exposure, contractual enforceability, and operational resilience.¹

The central issue is not the existence of opportunity, but the quality of the legal and institutional environment in which that opportunity may be pursued. Afghanistan remains a market in transition, where authority, licensing integrity, payment channels, dispute-resolution pathways, and stakeholder legitimacy are all shaped by conditions of political non-recognition, governance fragility, and evolving external restrictions. For investors, this creates a setting in which conventional frontier-market analysis is insufficient and transaction design must be informed by a more specialized legal-risk methodology.²

This white paper applies the **Maddahinasab Transitional Risk Intelligence System™ (MTRIS™)** to Afghanistan’s extractive sector as a structured method for evaluating whether prospective transactions can survive institutional volatility and remain commercially viable. The framework assesses risk across interrelated dimensions including institutional continuity, title and licensing integrity, contract enforceability, sanctions and compliance exposure, local governance and ESG considerations, and transitional volatility. By converting broad uncertainty into a disciplined analytical structure, **MTRIS™** enables more precise judgments about bankability, structuring, and long-term exposure.

The analysis suggests that Afghanistan’s mineral sector may present strategic value for selective actors, particularly those with high tolerance for legal complexity and the capacity to deploy advanced risk-mitigation tools. However, commercial participation is likely to remain constrained by fragmented governance, limited international recognition, banking frictions, compliance burdens, and uncertainty regarding the durability of concessions and contractual commitments. In practical terms, viable engagement depends less on resource abundance than on the ability to structure transactions with exceptional legal resilience, adaptive protections, and continuous monitoring.

Accordingly, this white paper is intended not as a general market commentary, but as a transitional-risk advisory tool. It is designed to support investors, counsel, and commercial stakeholders in identifying where legal exposure is concentrated, where risk allocation is most

¹ U.S. Geological Survey (USGS). 2025. Mineral Commodity Summaries. Washington, DC: U.S. Department of the Interior. (See also historical USGS Afghanistan assessments confirming Mes Aynak resources of approximately 11+ million tonnes copper.)

² Ashraf Dawar, Muhammad Waqar Khan and Lindsey Tchatchouang, "The geopolitical implications of rare earth minerals extraction in Afghanistan" (2025) 14 Journal of Trace Elements and Minerals 100267

vulnerable, and where enhanced due diligence is required before capital is deployed. In transitional markets such as Afghanistan, the decisive advantage lies not in assuming risk, but in structuring for it with precision.

2. Why Afghanistan Matters in the Energy Transition

Despite substantial legal and institutional complexity, Afghanistan possesses one of the world's most strategically significant undeveloped mineral portfolios. In the context of accelerating global energy transition, intensifying supply-chain competition, and growing demand for battery-related minerals, Afghanistan is increasingly viewed as a frontier jurisdiction with long-term geopolitical and commercial relevance.³

The global energy transition has intensified competition for critical minerals. Copper, lithium, nickel, graphite, cobalt, and rare earth elements are now foundational to electric mobility, battery storage, renewable energy infrastructure, and a growing range of industrial and defense applications. As demand increases and supply chains remain concentrated, states and investors alike are searching for jurisdictions that can contribute to long-term diversification.⁴

Afghanistan has emerged as one such jurisdiction. Its mineral profile includes significant copper deposits, prospective lithium formations, rare earth potential, and additional strategic resources that have attracted continuing attention from state-linked enterprises, regional actors, and opportunistic investors. The country's resource base is therefore not merely a geological fact; it is a geopolitical variable with implications for supply security, industrial policy, and market positioning.⁵

At the same time, Afghanistan's relevance must be understood in context. The country does not presently offer a conventional investment environment. Instead, it presents a transitional legal setting in which the practical value of mineral assets is shaped by governance structures, licensing integrity, infrastructure constraints, sanctions exposure, and the degree to which contractual commitments can survive institutional change. In other words, Afghanistan matters not because it is easy to enter, but because it forces investors to confront the legal realities of transitional markets with unusual clarity.

2.1 Strategic Context

Afghanistan's extractive sector sits at the intersection of resource opportunity and institutional uncertainty. The country's de facto authorities have continued to promote mining as a vehicle for revenue generation, and international engagement, while foreign actors have shown varying

³ Aziz Ahmad Fazli and Sayed Taher Erfani, 'Lithium as a Strategic Resource in Global Politics; Opportunities and Challenges for Afghanistan' (2025) 2 Semiannual Scientific-Research Journal of Political and International Studies 131

⁴ Xuejia Du and Ganesh C Thakur, *The Growing Importance of Critical Minerals for the Energy Transition and US Supply Chain Security* (SPE 2025)

⁵ Dawar, Khan and Tchatchouang, 'The geopolitical implications of rare earth minerals extraction in Afghanistan'

degrees of interest in access, concessionary positioning, and supply-chain diversification. Yet the practical conditions for long-horizon investment remain constrained by fragmented governance, weak infrastructure, and unresolved questions concerning legal stability.

This creates a market environment in which transactional success depends less on the nominal existence of a concession than on the durability of the surrounding legal architecture. Title continuity, licensing legitimacy, banking access, dispute-resolution enforceability, and local stakeholder dynamics all become material to the investment thesis. For that reason, Afghanistan is best understood not simply as a mineral jurisdiction, but as a test case for transitional legal resilience.

2.2 Risk-Opportunity Balance

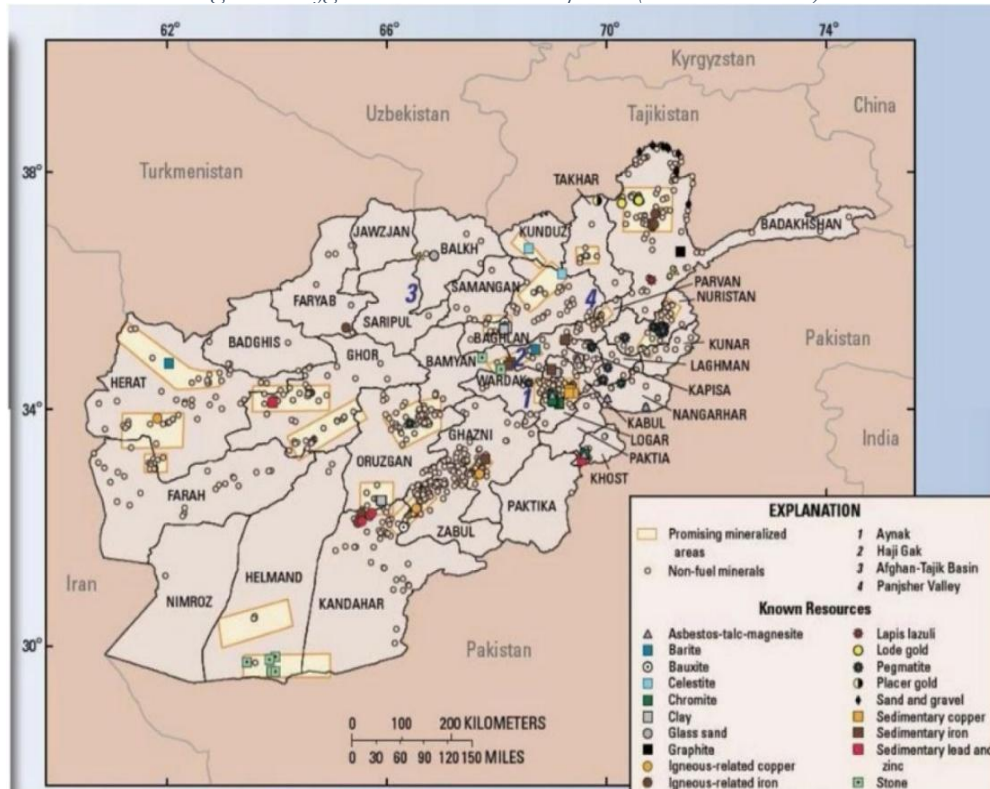
Afghanistan offers exceptional mineral potential, but that potential is inseparable from elevated legal and commercial risk. The sector's investment appeal is strongest for actors with the capacity to manage complex compliance obligations, absorb transitional uncertainty, and structure transactions with built-in protections against disruption. For most investors, the key challenge is not whether opportunities exist, but whether those opportunities can be converted into enforceable, bankable, and operationally sustainable arrangements.⁶

Mineral abundance does not guarantee viability. Realizing Afghanistan's potential requires addressing institutional fragility, regulatory uncertainty⁷, and transitional risks head-on—precisely the focus of the **MTRIS™**.

⁶ Thomas N Hale and Saleem H Ali, 'Afghanistan's mineral fortune: prospects for fuelling a green transition?' (2023) 526 Geological Society, London, Special Publications 69

⁷ Zora Arfina Sukabdi and Muhammad Hadrar, 'Chinese investment in Afghanistan: Opportunities and challenges' (2026) 10 Asian Themes in Social Sciences Research 1

Figure 1: Afghanistan's Mineral deposits (Source: USGS⁸)



⁸ U.S. Geological Survey, & Afghanistan Geological Survey, Preliminary assessment of non-fuel mineral resources of Afghanistan (U.S. Geological Survey Fact Sheet No. 2007-3063), U.S. Agency for International Development (2007) <https://doi.org/10.3133/fs20073063>

3. Afghanistan's Extractive Legal Architecture

Afghanistan's extractive sector is grounded in constitutional provisions declaring subsurface resources as state property (historically Article 9 of the 2004 Constitution, retained in practice). The formal framework is anchored in successive Minerals Laws (notably the 2018 version and Taliban adaptations), which aim to regulate licensing, exploration, exploitation, royalties, and environmental/social safeguards while encouraging foreign investment. Under Taliban administration since 2021, the Ministry of Mines and Petroleum (MoMP) has continued to apply and modify pre-existing regulations. Key adaptations include streamlined licensing for smaller contracts and emphasis on rapid revenue generation.⁹

- ✓ **Recent Example:** The Mes Aynak copper project contract with MCC/Jiangxi Copper was extended by another 15 years in 2026, increasing the total duration to 45 years. Road construction has advanced, with underground mining adopted to address archaeological concerns, targeting operational start in late 2026.

However, the core challenge lies in institutional legitimacy and continuity. Contracts issued under current arrangements lack broad international recognition, creating vulnerabilities in title security, enforceability, and future renegotiation risks if governance shifts occur.

Table 1: Strategic Mineral Opportunities in Afghanistan (2026)

<i>Mineral</i>	<i>Key Regions / Deposits</i>	<i>Strategic Relevance</i>	<i>Current Status (2026)</i>	<i>Principal Commercial Interest</i>
<i>Copper</i>	Mes Aynak (Logar)	Energy infrastructure, industrial manufacturing	Infrastructure and concession activity progressing	Chinese state-linked entities
<i>Lithium</i>	Nuristan, Ghazni, Helmand	EV batteries, storage technologies	Exploratory interest; no mature commercial production	Chinese and regional investors
<i>Rare Earth Elements</i>	Khanneshin and surrounding regions	Renewable technologies, electronics, defense sectors	Early-stage interest and fragmented contracts	Regional and Chinese actors
<i>Iron Ore</i>	Hajigak	Steel production and infrastructure	Limited progress due to instability	Regional interest
<i>Gold / Zinc / Lead</i>	Multiple provinces	Export and industrial use	Small-scale extraction contracts	Regional operators

⁹ Ghazal Habibyar and Javed Noorani, 'Afghanistan's Minerals: Past and Present' (2023)

4. Core Legal Risks for Foreign Investors

Foreign investors entering Afghanistan's extractive sector confront a layered transitional-risk environment in which legal, regulatory, compliance, and operational exposures are tightly interconnected. Under MTRIS™, these risks are not treated as isolated items on a checklist; they are assessed as mutually reinforcing indicators of whether a transaction can survive institutional volatility and remain commercially viable. In Afghanistan, the legal question is therefore not whether one risk exists, but how several forms of risk interact across the life of the investment.

4.1 Institutional Continuity Risk

Institutional continuity is the first and most fundamental risk dimension because it determines whether the legal and administrative environment supporting the transaction is likely to endure. In Afghanistan, licenses, concessions, and administrative approvals may be issued within a governance structure that lacks broad international recognition and may be vulnerable to future review, reinterpretation, or repudiation. For investors, this creates uncertainty not only about the validity of existing rights, but also about their survival under a successor authority or a changing political settlement.¹⁰

4.2 Sanctions & Compliance Risk

Sanctions and compliance risk must be assessed before enforceability because, in transitional markets, a transaction that cannot be cleared through compliance channels may never become operational in the first place. Afghanistan presents a particularly complex environment in this respect, with targeted sanctions exposure, enhanced AML/KYC scrutiny, beneficial ownership concerns, and practical constraints on correspondent banking, insurance, and international payment flows. Even where a project is theoretically lawful, compliance barriers may render execution difficult or prohibitively costly.¹¹

Even commercially permissible activities may face enhanced due diligence requirements, heightened compliance review, reputational risk considerations, and operational friction in cross-border financial transactions. These conditions have, in practice, contributed to a more selective investment environment in which regional actors—particularly from neighboring states and China—have demonstrated comparatively higher market engagement than many Western firms.

4.3 Contract Enforceability Risk

Contract enforceability risk concerns whether the legal rights created by the transaction can actually be protected, interpreted, and enforced in practice. In Afghanistan, this risk is amplified by uncertainty around the recognition of governing authority, the predictability of domestic dispute resolution, and the practical enforceability of arbitral awards or contractual remedies. A sophisticated contract may appear robust on paper while remaining fragile in a contested institutional environment.

¹⁰ Margaret J Foster, 'Gig Economy Insurgency' (2024) *Studies in Conflict & Terrorism* 1

¹¹ Saifullah Rahimi and Ajai Prakash, 'The Role of NGOs and International Actors in Supporting Microfinance Post-2021 in Afghanistan' (2025) 7 *International Journal For Multidisciplinary Research*

4.4 Local Governance & Stakeholder Risk

Title and licensing integrity form the bridge between institutional continuity and contractual enforceability. In Afghanistan's extractive sector, the validity of a concession depends on the chain of authority behind it, the completeness of the licensing record, the legitimacy of any amendments or extensions, and the likelihood that the right will remain secure over time. Where the concession chain is incomplete or politically vulnerable, the asset may be difficult to finance, insure, or defend

4.5 ESG Risks (Environmental, Social, Governance)

Local governance and ESG exposure reflect the extent to which the project depends on community acceptance, informal authority structures, environmental management, and governance credibility. In extractive projects, these factors can materially affect access to land, workforce stability, operational continuity, and reputational standing. A project that is legally valid but socially contested may still become commercially fragile.¹²

Table 2: Comparison with other high-risk jurisdictions

<i>Aspect</i>	<i>Afghanistan (2026)</i>	<i>DRC</i>	<i>Myanmar</i>
<i>Institutional Continuity</i>	High uncertainty linked to contested recognition and evolving governance structures	Moderate instability	High uncertainty under military administration
<i>Sanctions & Compliance</i>	Elevated compliance burden; targeted restrictions and banking friction	Limited targeted sanctions	Extensive sanctions exposure
<i>ESG Challenges</i>	Weak institutional oversight; human rights and governance concerns	Conflict minerals, artisanal mining risks	Rights and environmental concerns
<i>Contract Transparency</i>	Limited transparency; significant negotiation opacity	Improving but corruption concerns persist	High opacity
<i>Foreign Investor Appeal</i>	Primarily regional and Chinese actors; Western caution	Mixed investor environment	Limited appetite

¹² Raphael Deberdt, Nathaniel Buffenoir and Farnaz Gholami, 'Mining green minerals with the Taliban: Addressing new sourcing risks from Afghanistan in the age of the green transition' (2024) 17 The Extractive Industries and Society 101446

5. Scenario Outlook (2026–2030)

Base Case (Most Likely) — Continued Chinese-dominated extraction activity focused primarily on raw-material access, with incremental infrastructure development but limited institutional reform or broader economic transformation.

Optimistic Scenario — Selective international engagement, gradual regulatory stabilization, and limited infrastructure modernization improve commercial predictability and facilitate cautiously expanded foreign participation.

Pessimistic Scenario — Escalating sanctions exposure, security deterioration, governance disputes, or internal fragmentation significantly impair investment viability and disrupt ongoing projects.

Afghanistan’s mineral sector cannot presently be assessed through conventional frontier-market assumptions alone. The combination of political transition, fragmented institutional legitimacy, sanctions complexity, and weak enforcement structures requires highly specialized legal and transitional-risk analysis.

Accordingly, opportunities in Afghanistan’s critical-minerals sector are bankable only through disciplined transaction structuring, layered compliance assessment, adaptive contractual architecture, and continuous geopolitical risk monitoring.

Table 3: SWOT Matrix: Afghanistan as a Transitional Investment Destination (2026)

STRENGTHS	WEAKNESSES
Exceptional Mineral Endowment — Afghanistan possesses significant untapped deposits of copper, lithium, rare earth elements, cobalt, iron ore, gold, and gemstones, many of which are strategically relevant for battery technologies, renewable energy systems, and global supply chains. Strategic Geoeconomic Position — Afghanistan occupies a geographically important position linking Central Asia, South Asia, China, and the Middle East, potentially serving as a future transit and logistics corridor. Underdeveloped Market with First-Mover Potential — High barriers to entry and limited competition may create strategic advantages for early movers capable of managing elevated risk profiles. Abundant Renewable Energy Potential — Significant solar, wind, and hydropower potential may support domestic electrification and energy-intensive mineral extraction in the future. Growing Regional Economic Engagement — Increased engagement by regional actors including China, Central Asian states, Gulf investors, Pakistan, and Türkiye may contribute to selective sectoral development.	Institutional and Regulatory Uncertainty — Lack of internationally recognized governance structures creates uncertainty regarding regulatory continuity, contract enforceability, legal standing of concessions, and future sovereign commitments. Weak Legal Infrastructure — Judicial independence, commercial dispute resolution, arbitration enforcement, property registration systems, and administrative transparency remain underdeveloped or inconsistent. Banking and Financial Isolation — International financial restrictions, correspondent banking challenges, AML/KYC scrutiny, and payment settlement risks significantly complicate cross-border investment operations. Critical Infrastructure Deficits — Insufficient transport corridors, electricity supply, logistics systems, telecommunications resilience, and industrial processing facilities increase transaction costs and operational uncertainty. Human Capital and Technical Capacity Constraints — Shortages of specialized technical expertise, skilled labor, industrial governance systems, and institutional administrative capacity may delay complex projects.

These opportunities are bankable only through sophisticated legal structuring—precisely the domain of the framework below.

6. MTRIS™ Applied: Afghanistan Transitional Risk Outlook

Conventional political-risk analysis is insufficient for jurisdictions undergoing profound institutional transition. Afghanistan exemplifies a complex transitional environment in which formal legal systems, political authority structures, sanctions exposure, tribal and local governance dynamics, international recognition questions, and practical enforcement realities interact simultaneously.

For foreign investors, mining operators, advisory firms, commodity traders, insurers, and financial institutions, the central challenge is not merely political instability but the durability of legal rights across shifting institutional conditions. Legality at entry provides limited protection where institutional continuity, regulatory enforceability, and operational feasibility remain variable.

The **Maddahinasab Transitional Risk Intelligence System™ (MTRIS™)** provides a structured legal-strategic methodology for evaluating investment exposure in such environments. Rather than seeking predictive certainty, **MTRIS™** delivers analytical clarity by examining the interaction between institutions, geopolitics, contractual architecture, and operational realities..

6.1 Systemic Analysis

MTRIS™ employs a three-layer analytical architecture:

- ✓ Institutional Layer,
- ✓ Transactional Layer,
- ✓ Operational Layer,

Resulting in the nine sequential stages:

- ✓ Institutional Legitimacy Assessment,
- ✓ Geopolitical & Sanctions Mapping,
- ✓ Title & Asset Legitimacy Review,
- ✓ Contract Structuring & Risk Allocation,
- ✓ Local / ESG Validation,
- ✓ Regulatory Compliance Testing,
- ✓ Scenario Planning,
- ✓ Exit & Protection Strategy,

- ✓ Ongoing Monitoring Loop,

In the Afghan context, the Institutional Layer — comprising the first three stages of the **MTRIS™** sequential methodology — constitutes the foundational pillar of the due diligence support provided by the System. Given the complex tribal and social dynamics that characterize Afghanistan, Local/ESG Validation assumes heightened strategic importance. Likewise, the Exit & Protection Strategy serves as a critical safeguard, essential to preserving capital and contractual resilience across potential institutional transitions.

6.3 Hypothetical Application Scenario

Scenario: A mid-sized European critical-minerals company evaluates participation in a lithium exploration joint venture in Afghanistan in 2026.

Illustrative **MTRIS™** Outcome: The integrated assessment would likely place the opportunity in the high Risk category, driven primarily by challenges in Institutional Stability, Compliance Feasibility, and Operational Exposure. Key factors include institutional recognition uncertainty, limited banking/payment channels, sanctions-related constraints, contract enforcement unpredictability, infrastructure weaknesses, and governance/security considerations.

Potential Structuring Responses:

- ✓ Phased capital deployment with clear milestones.
- ✓ Enhanced stabilization, force majeure, and exit provisions.
- ✓ Layering of political risk insurance (PRI) where available.
- ✓ International arbitration structuring and robust compliance protocols.
- ✓ Continuous monitoring and scenario-based contingency planning.

Conclusion

Afghanistan exemplifies an institutionally complex and legally challenging frontier jurisdictions in the contemporary global economy. At the same time, its substantial critical mineral reserves position the country as a strategically significant potential contributor to future energy-transition supply chains and critical-minerals markets.

This duality defines a classic transitional paradox: exceptional resource potential juxtaposed with profound uncertainty surrounding governance continuity, legal enforceability, sanctions exposure, infrastructure limitations, and institutional legitimacy.

In such environments, conventional emerging-market or political-risk analysis proves insufficient. Sustainable engagement demands a disciplined legal-strategic approach — one that integrates institutional assessment, transactional resilience, compliance feasibility, and operational exposure through structured intelligence.

The **Maddahinasab Transitional Risk Intelligence System™ (MTRIS™)** is designed to address this imperative. By transforming transitional uncertainty into structured, multi-layered analytical clarity, **MTRIS™** equips investors, project developers, and strategic institutions with the tools to calibrate exposure more effectively, strengthen due diligence, and design resilient contractual and operational architectures.

Ultimately, Afghanistan's long-term investment viability will hinge not solely on its geological endowments or global resource demand, but on the evolution of institutional durability, regulatory predictability, political authority structures, and constructive international engagement.

In transitional jurisdictions, sophisticated legal architecture is no longer merely supportive — it is foundational to sustainable investment participation.

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Advisory Engagements

MTRIS™ is intended for institutional investors, legal teams, project developers, financial actors, insurers, and commercial participants evaluating exposure in transitional or institutionally volatile markets.

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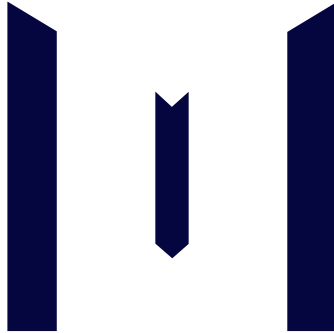
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